The EUR-Lex Retrieval Dataset

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Annotation Guidelines

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1 Introduction

This document serves as a guide for annotators working on the EUR-Lex 2025 Retrieval Dataset. For all intents and purposes, the goal of this text is to ensure that annotations are carried out in a consistent manner and in line with the dataset's intended use, which is to evaluate different information retrieval and reranking models. At a general level, each annotator's task revolves around assessing how closely a candidate document matches the information conveyed in a query document. The queries and candidate documents in this dataset are drawn from English judgments handed down by the Court of Justice of the European Union (CJEU). While many of these cases share similar terminology, structure, and references to legal provisions, they often differ in the legal issues they address. As a result, determining query-candidate relevance calls for careful judgment.

The annotations produced through this process fulfil both a direct and an indirect purpose. Within the scope of this particular project, the primary objective is to be able to evaluate the performance of information retrieval systems, in particular their ability to rank relevant documents higher than less relevant ones. In addition, it is anticipated that the dataset, once completed and shared, can contribute to broader research efforts such as the training of retrieval and reranking models and the development of downstream information retrieval applications.

The quality of the annotations is therefore of central importance: high-quality annotation labels make it possible to draw meaningful conclusions about an information retrieval system's performance and to build models that generalize well beyond the dataset itself, whereas inconsistent annotations can reduce the reliability of the evaluation results and any models trained on the data. With that in mind, these guidelines are meant to establish a clear framework to support consistent decision-making throughout the entire annotation process.

Due to the nature of legal texts, query-candidate relevance is rarely clear-cut. To capture subtle differences, the annotation task relies on a graded relevance scale. This allows annotators to distinguish between documents (i) that directly address the same legal issue, (ii) that are related at the level of legal principles or at a doctrinal level, (iii) that are only broadly connected through the legal domain or broader context, and (iv) that are not meaningfully related at all. It is important to note that relevance is not always immediately obvious and may thus require interpretation. For example, a candidate document might appear similar to a query document at first glance due to shared terminology or references to common legal provisions, but in fact address different questions.

When assessing query-candidate relevance, the central question is whether the candidate document would genuinely help someone understand or resolve the issue raised in the query document. In other words, the leading question is always the following:

Would this candidate document meaningfully assist a legal expert in addressing the issue presented in the query document?

When answering this question, annotators are strongly encouraged to follow the guidelines provided in this document closely.

Ultimately, with your input, you will be helping to create a high-quality dataset that can be used to evaluate models for similar case retrieval in EU law and beyond. In short, your role as an annotator is key to the success of this project and we are therefore very grateful for your involvement.

2 Overview of the research project

2.1 Background and objective

Legal decision-making relies heavily on the ability to identify and interpret relevant prior case law. In the EU, the judgments of the CJEU in particular play a central role in clarifying core legal principles and settling questions of interpretation about EU law. Hence, when deciding new cases or shaping expectations about EU law, judges, legal practitioners and scholars seek earlier judgements to understand how specific legal issues have been addressed in the past. However, as the body of case law grows, identifying the most relevant legal precedents becomes increasingly time-consuming and complex.

In light of this challenge, this research project focuses on evaluating different systems for ***similar case retrieval*** (SCR): systems designed to surface, rank, and recommend prior judgements relevant to a given query judgment. Broadly speaking, these systems are typically built using different types of information retrieval methods:

(i) *Lexical retrieval*, where documents are identified by matching exact words or phrases from the query using keyword-based scoring methods
(ii) *Semantic retrieval*, where documents are retrieved based on similarity in meaning, even when they do not share the same vocabulary
(iii) *Cross-encoder re-ranking*, where an initial set of retrieved documents is further refined by directly comparing each query with each candidate document to assess their relevance more precisely

Each of these approaches has its own strengths and limitations and one facet of this project is to understand how well they perform apropos long-form legal case retrieval.

The overall aim is to support legal professionals by developing tools that reduce the so-called "needle in a haystack" problem that is inherent in large legal corpora. To achieve this, the project needs a dataset in which the relevance between pairs of cases has been manually evaluated. These human judgments are essential since they provide a gold reference standard against which retrieval systems can be measured. Your role as an annotator is therefore central to this effort: the annotations you provide will be used to determine whether a system retrieves appropriate cases and ranks them in a meaningful way. In this sense, your annotations help define what "relevance" means in a case law context, which ultimately contributes to more reliable and effective legal information retrieval systems.

2.2 Dataset

The dataset underpinning this work comprises 20,697 English judgments published by the CJEU between 1954 and 2025. As such, this spans nearly[1] all judgments made available through EUR-Lex within this timeframe. All judgments were programmatically harvested from EUR-Lex and then parsed into a structured, machine-readable JSON format, with separate fields capturing elements such as case metadata, a summary, and the distinct segments of each case (e.g., factual background, reasoning, and operative part). An example of this JSON representation is shown below (see *Table 1*).

Raw text representation of a judgment	Structured JSON representation of a judgment

JUDGMENT OF THE GENERAL COURT (First Chamber)
 	
30 April 2025 (*)
 	
(EU trade mark – Opposition proceedings – International registration designating the European Union – Figurative mark hey car select – Earlier national figurative mark geicar vehículos seminuevos y de ocasión – Likelihood of confusion – Similarity of the signs – Similarity of the services – Article 8(1)(b) of Regulation (EU) 2017/1001)
 	
In Case T-338/24,
 	
Mobility Trader Holding GmbH, established in Berlin (Germany), represented by C. Rehaag and C. Goldstein, lawyers,
applicant,
 	
v
 	
European Union Intellectual Property Office (EUIPO), represented by D. Gája, acting as Agent,
defendant,
[…]
 	
Judgment
 	
1 By its action under Article 263 TFEU, the applicant, Mobility Trader Holding GmbH, seeks, in essence, the annulment and alteration of the decision of the First Board of Appeal of the European Union Intellectual Property Office (EUIPO) of 24 April 2024 (Joined Cases R 1094/2023-1 and R 1105/2023-1) ('the contested decision').
 	
Background to the dispute
 	
2 On 1 April 2020, the applicant designated […]
	{
	"case_metadata": {
	"celex": "62024TJ0338",
	"document_link": "[…]",
	"ecli": "ECLI:EU:T:2025:420",
	"case_number": "T-338/24",
	"date_of_judgment": "2025-04-30",
	"document_type": "Judgment",
	"court": "General Court",
	"case_name": "Mobility Trader Holding GmbH v European Union Intellectual Property Office"
	},
	"case_summary": {
	"subject_matter": "Assessment of the likelihood of confusion between an EU trade mark application […]",
	"keywords": [],
	"summary_text": "Mobility Trader Holding GmbH sought the annulment […]"
	},
	"case_segments": {
	"document_start": {},
	"procedural_introduction": {},
	"legal_context": {},
	"facts_and_background": {},
	"decision_on_costs": {},
	"operative_part": {},
	"document_end": {}
	},
	"citations": {
	"list": [],
	"detailed": {},
	"edges": []
	}
	}

Table 1 – Comparison of an original judgment in raw text format (left) and its structured JSON representation (right).

The dataset covers cases from all areas of EU law (e.g., competition law, consumer protection, data privacy, environmental law,...) and includes landmark cases as well as more routine judgments. Consequently, annotators will encounter cases with varying levels of complexity, narrative styles, and legal issues.

2.3 End use of annotations

The annotations produced in this project form the basis for evaluating and enhancing the performance of information retrieval systems: they establish a benchmark for measuring how

[1] A small number of cases (29 in total) could not be accessed due to invalid metadata.

effectively different models can identify and rank relevant cases in response to a given query case. In this respect, these annotations make it possible to compare models based on their ability to place the most relevant cases at the top of the results list, while ranking less relevant cases lower.

By making both the annotated dataset and the accompanying code publicly available, the project also aims to support further research in this area. This openness is meant to enable other scholars to test new approaches, reproduce results, and contribute to the ongoing development of more accurate legal information retrieval systems.

2.4 Your role as annotator

The success of this project ultimately depends on the quality and consistency of the annotations. This is because information retrieval evaluation metrics rely on human judgements informed by an understanding of legal reasoning, context and the relationship between cases. In particular, determining whether one case is useful for another involves interpreting the legal issues and the underlying principles. In this respect, expert human judgement remains the gold standard.

As annotators, your role is therefore essential to the overall success of the project. By carefully and consistently evaluating the relevance of each case to a query, you help to ensure that the dataset reflects meaningful legal relationships rather than superficial similarities. This in turn makes the evaluation results derived from the dataset more reliable. Fundamentally, the quality of your annotations directly affects how well information retrieval models can be evaluated in real-world legal research scenarios.

3 Annotation task

3.1 Nature of the task

Within this project, the task of similar case retrieval can be understood as a structured process that revolves around three components:

(i) ***A query case***. A query case is the reference case for which relevant precedents are to be identified. Conceptually, a query can be compared to a *search term* entered into a search engine.

(ii) ***A candidate case***. For each query case, a set of candidate cases is provided. These are other CJEU judgments that may or may not be relevant to the query case. Conceptually, a candidate case can be understood as *a possible search result* for the specified search term.

(iii) ***A relevance assessment***. The purpose of the annotation tasks revolves around carrying out a relevance assessment, where the objective is to determine how useful each candidate case is in relation to the query case

Each of these three components is considered in more detail below.

3.1.1 Query cases

The first component of the annotation task is the query case. Essentially, the query case serves as the reference point for your assessment. Inherent to every query, it that it pertains to a particular

factual background, touches on different legal issues and demonstrates a particular line of reasoning. *In your role as annotators, your first step is to identify the core legal issue of the query case*. This issue then defines the basis against which relevance is assessed.

Since it is not feasible to annotate all possible cases, 100 query cases are randomly selected from the dataset. These cases then form the basis for evaluation. As they cover a wide range of legal issues, contexts, and domains, it is assumed that they provide a meaningful benchmark for assessing the performance of information retrieval systems. As the next stage, it is expected that the performance measured on this subset would generalize to unseen query cases.

3.1.2 Candidate cases

The second component of the annotation task concerns the candidate case. As noted above, a candidate case is another judgment that may or may not be relevant to the query case. For example, a candidate case could:

- Address the same or a different legal issue
- Involve similar or distinct legal principles
- Pertain to the same or a different area of EU law
- Exhibit only superficial similarities without substantive overlap

As annotators, *you should read the candidate case with the query case in mind and evaluate the extent to which the candidate case contributes to understanding or resolving the issue identified in the query case.*

For each query, you will be presented with a set of candidate cases. As with the query selection, it is not feasible to consider every possible candidate from the full pool of 20,697 cases. Instead, a number of candidate cases are pre-selected through automated retrieval methods designed to identify potentially relevant judgements. On average, approximately 124 candidate cases are selected per query.

It is very important to keep the following in mind: *the presence of a candidate case does not imply that it is relevant.* In fact, some candidates are expected to be highly relevant, while others are deliberately included as irrelevant examples (i.e., random negatives). Each candidate case must therefore be assessed independently, based solely on its relationship to the query case that is shown.

3.1.3 Relevance assessment

In this project, the concept of "relevance" is defined in a functional and legal sense. *The central question is whether a candidate case would assist a legal expert in engaging with the issue raised in the query case*. When assessing relevance, you should consider:

- Whether the same or a closely related legal issue is addressed
- Whether the cases rely on similar legal principles or doctrine
- Whether the candidate case could inform, support, or clarify the analysis of the query case

By extension, a key distinction must be drawn between *substantive relevance*, whereby the candidate case meaningfully contributes to the legal issue at hand, and *surface similarity*, whereby cases appear similar due to shared terminology, references to legal provisions or the same general domain, but do not address the same underlying question. Annotations should be guided by substantive relevance: a case should only be considered as directly relevant if it would realistically be useful in legal reasoning related to the query case.

3.2 Unit of annotation

A combined reading of the previous three sections leads to the conclusion that the individual unit of annotation is a so-called *query-candidate pair*. Each query-candidate pair should always be assessed independently. The task is thus to evaluate each candidate case on its own merits in relation to a query (rather than ranking candidates relative to each other). This assessment should focus on one pair at a time and be based on the content presented.

4 Annotation setup and interface

4.1 Annotation interface

The annotations themselves are handled via a dedicated annotation interface. This interface is a simple webpage that can be downloaded and used locally via a standard web browser without an active internet connection. Access to the interface and annotation materials is granted to each annotator individually via a OneDrive link from the university. Each annotator will find the following folder structure:

(i) "empty": contains empty annotation sheets
(ii) "labelled": intended for uploading completed annotation sheets
(iii) "guidelines": contains a digital copy of the Annotation Guidelines
(iv) "interface": includes the file "annotation_interface.html" (the annotation interface) and the file "xlsx.full.min.js" (a JavaScript library enabling reading and writing of spreadsheet files)

It is strongly recommended that annotators download the full folder to their local device and work from there. To minimize the risk of data loss, partially or fully completed annotation sheets should be uploaded to OneDrive.

The interface can be launched by opening annotation_interface.html with your web browser. It has been tested and found to work well in Google Chrome and Mozilla Firefox, and to a lesser extent in Safari. For the interface to work properly, the file "xlsx.full.min.js" must be located in the same folder as the interface file.

The interface supports three main functions, each of which will be explained below:

(i) Loading an annotation sheet
(ii) Carrying out annotations
(iii) Exporting completed annotation sheets

4.1.1 Loading an annotation sheet

Upon opening the interface, an introductory screen is displayed (see *Figure 1*). On the left is a button that allows you to load an annotation sheet. The blank annotation sheets are provided in .csv (comma-separated values) format and can be found in the folder "empty". On the right, annotators are asked to enter their name. This name will be automatically added to the file name when exporting completed annotated sheets.

Each annotator's workload is divided into multiple files, each containing 100 rows to annotate. Files follow the naming convention: "annotator_XX_partXX.csv", where each "part" corresponds to a separate batch of annotations that needs to be completed.

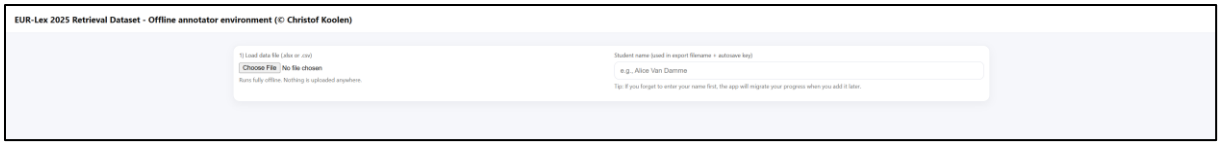


Figure 1 – The introductory view of the annotation interface.

4.1.2 Carrying out annotations

Once an annotation sheet has been loaded, the view will immediately update to permit annotations to be made (see *Figure 2*). The interface will then display the following information:

- *Left side: the query case*
    - The ECLI and date of judgment of the query case
    - The name of the query case
    - The summary of the query case
    - The full text of the query case
    - A link that directs to the official source on EUR-Lex
- *Right side: the candidate case*
    - The ECLI and date of judgment of the candidate case
    - The name of the candidate case
    - The summary of the candidate case
    - The full text of the candidate case
    - A link that directs to the official source on EUR-Lex

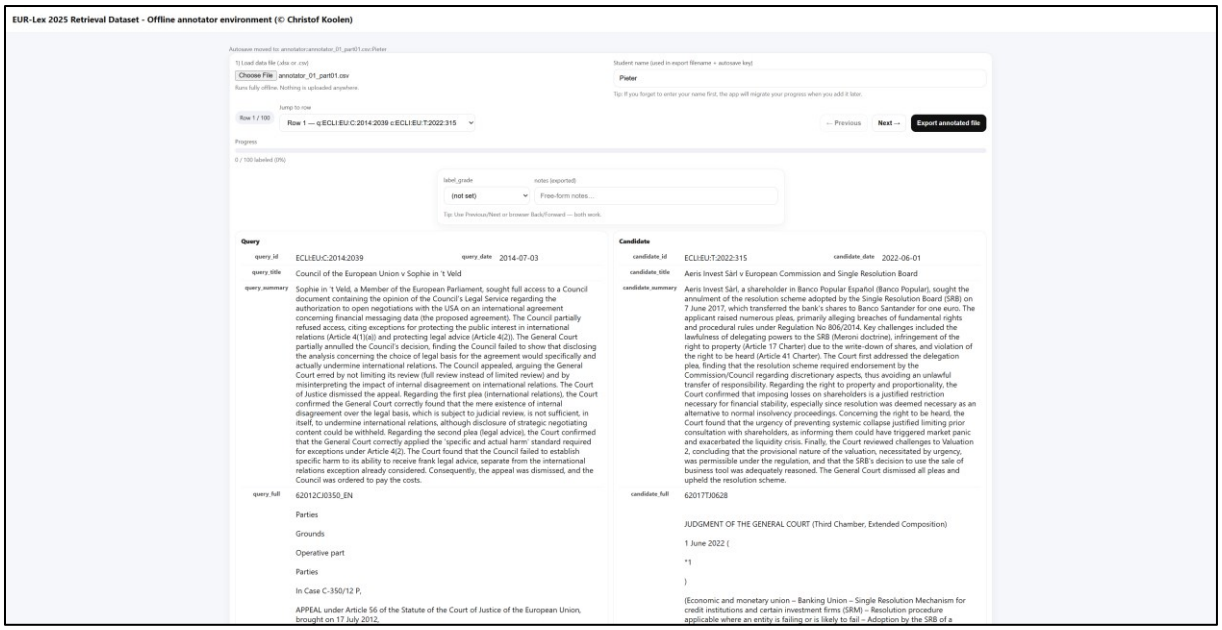


Figure 2 – The main view to carry out annotations.

In the center of the screen, annotators will find a drop-down menu (*label_grade*) to assign a relevance label, as well as a text field labelled (*notes*) for submitting free-form comments. A progress bar shows how many rows have been completed. Once a label has been assigned (and a note added, if desired), you can proceed to the next pair. To that end, at the top of the screen, several new buttons are visible. The navigation buttons "Previous" and "Next" serve the purpose of being able to quickly navigate between different rows. This implies that *you can always go back to review or edit previous annotations within your assigned batch.*

4.1.3 Exporting filled-out annotation sheets

When working with a loaded annotation sheet, intermediate annotation progress is saved locally. However, annotators must manually export their work by clicking on the "Export annotated file" button. When exporting, the completed file will then be saved to your local Downloads folder. Always make sure to regularly save your work to avoid potential issues of data loss. Once a batch is completed, the exported file should be uploaded to the corresponding "labeled" folder in OneDrive.

For completeness's sake, annotations can always be paused or resumed; it is not needed to finish an annotation sheet in one single sitting. Partial annotations can be exported as well, and a partially annotated file can also be reloaded.

4.2 Practical instructions

To support a smooth annotation process, the following practical guidelines should be kept in mind:

1. *Submitting annotations*: make sure that a relevance label has been added for each query-candidate pair before reuploading the filled-out annotation sheet.

2. *Editing and correcting entries*: the annotation interface allows you to review and revise earlier annotations. Hence, if you notice an error or if you'd need to revisit a particular row, you are free to introduce corrections.
3. *Technical issues:* if you experience any problems with the annotation interface (e.g. loading errors, missing content, inability to submit annotations), please do report these issues to the author.

5 Label schema

This section outlines the relevance scale that annotators must use to assess the relationship between a query case and a candidate case. For this project, we use a graded relevance scale with four labels:

- Label 0: not relevant
- Label 1: marginally relevant
- Label 2: substantially relevant
- Label 3: directly relevant

The main reason for using this graded scale is that it enables us to capture a broader range of differences between cases that are directly related, loosely relevant, or not meaningfully related at all.

Before interpreting each specific label, it is important to recall and keep several general principles in mind:

1. Relevance is always assessed in relation to a particular query case. Each candidate case is either relevant or not relevant with respect to this query case.
2. The main approach to assessing relevance is to consider the substantive legal usefulness of a candidate case in solving the query case.
3. Surface-level or keyword-based similarity should not automatically establish relevance. While these elements can be relevant, they must also correspond to a meaningful substantive legal connection.
4. The labels represent a sliding scale of different degrees of legal usefulness (see *Table 2*)

Label 0	→	**Label 1**	→	**Label 2**	→	**Label 3**
Not relevant		Marginally relevant		Substantially relevant		Directly relevant

Table 2 – Overview of the labeling scale.

5. The highest label should be used carefully. Label 3 should be reserved for cases where the match between query and candidate is genuinely strong.
6. The label should reflect the candidate case as a whole, rather than fixating on one sentence or isolated point of overlap.

With these principles in mind, and for ease of reference, the four labels can be summarized as follows (see *Table 3*):

Label	Relevance level	Summary
0	Not relevant	No meaningful legal usefulness in relation to the query case
1	Marginally relevant	Some general or contextual connection, but little real value in addressing the issue in the query case
2	Substantially relevant	Clear and meaningful legal usefulness, but not a direct match to the specific issue in the query case
3	Directly relevant	Strong, specific and substantial relevance to the query case, or a very closely aligned legal issue to the query case

Table 3 – Summary overview of the graded labeling scale.

As a final note, when assigning a label, annotators should always return to the **central practical question: *would this candidate case help a legal expert to meaningfully address the issue raised in the query case, and if so, to what extent?*** The answer to this question should inform the selection of the label. The goal is essentially to place each candidate case at the correct level on the relevance spectrum, using the above definitions as consistently as possible. This means that you should neither overly reward superficial similarity nor be overly restrictive. The following subsections are intended to help with difficult or ambiguous cases by examining each label in more detail.

5.1 Label 0: not relevant

Label 0 should be assigned if the candidate case is not meaningfully relevant to the query case. In other words, the candidate case does not meaningfully contribute to the understanding or resolution of the issue raised in the query case. Even if the candidate case shares some general features with the query case, it would not be useful to a legal expert seeking comparable legal precedents.

The core meaning of Label 0 thus revolves (among others) around the following elements:

- The candidate case addresses a wholly different legal issue from the query case
- The candidate case does not apply the same legal principle in a useful way for the query case
- The candidate case is too general, too remote, or too incidental to be relevant to the query case
- …

Cases in this category often have one or more of the following features:

- They belong to a different legal domain
- They concern a different type of dispute
- They involve legal provisions that are unrelated to the core issue raised in the query case
- …

For example, two CJEU judgements could both cite provisions from the TFEU or discuss restrictions or procedural matters. That alone does not make them relevant to one another. If the legal issues differ in such a way that the candidate is unhelpful for the query, the correct label is 0.

In essence, *you should choose* ***Label 0*** *if, after reading both the query and candidate, your conclusion is: "****This case would not realistically help someone dealing with the issue in the query case****"*. Several examples of Label 0 cases are shown below.

<table>
<tr><th colspan="4">Example 1</th></tr>
<tr><td>Query ID
ECLI:EU:C:1999:324</td><td>Query date
22/06/1999</td><td>Candidate ID
ECLI:EU:C:2021:187</td><td>Candidate date
10/03/2021</td></tr>
<tr><td colspan="2">Query title: ED Srl v Italo Fenocchio</td><td colspan="2">Candidate title: PI, Request for a preliminary ruling from the Westminster Magistrates' Court</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">The case involves a preliminary ruling request from an Italian court concerning a national law that prohibits summary payment orders when service on the debtor must occur outside Italy. The applicant, ED Srl, sought such an order against a German resident debtor. The national court questioned whether this prohibition violated Articles 34 (free movement of goods), 59 (freedom to provide services), and 73b (free movement of capital) of the EC Treaty. The Court of Justice ruled that Article 34 does not apply because the hindrance to trade is too uncertain and indirect. It also found Article 59 irrelevant as the case did not involve services. Regarding Article 73b, the Court clarified that it applies to payments themselves, not to the procedural rules governing debt recovery actions. Therefore, the national procedural rule was deemed compatible with the Treaty provisions.</td><td colspan="2">This case involves a request for a preliminary ruling from the Westminster Magistrates' Court concerning a European arrest warrant issued by the Bulgarian prosecutor's office for the prosecution of PI. PI challenged the warrant, arguing that the Bulgarian system, where both the national arrest warrant and the European arrest warrant are issued by a prosecutor without prior judicial review, does not provide the dual level of judicial protection required by EU law and the Charter of Fundamental Rights. The Court of Justice, applying its established case-law on the European Arrest Warrant Framework Decision, clarified that while a prosecutor can be considered an 'issuing judicial authority', the system must still ensure effective judicial protection. This protection requires that either the European arrest warrant or the underlying national decision be subject to judicial review before surrender. The Court found that a system where review only occurs after surrender, as seemingly in the Bulgarian case described, does not meet this requirement. Therefore, the Court ruled that the European arrest warrant system's requirements for effective judicial protection are not satisfied if both the European arrest warrant and the underlying national decision are issued by a prosecutor without prior judicial review.</td></tr>
<tr><td colspan="4">Correct label: Label 0 – Not relevant</td></tr>
<tr><td colspan="4">Rationale: the candidate case is labeled with Label 0 because it addresses a completely different area of EU law and legal issue than the query case. Here, the query concerns internal market freedoms and the compatibility of national civil procedural rules with Treaty provisions, while the candidate focuses on criminal law and judicial cooperation (more specifically, the requirements of effective judicial protection in the context of a European arrest warrant). There is no overlap in legal principles, doctrine, or reasoning, and the candidate case would not provide any meaningful guidance to a legal expert dealing with the query case, making it entirely irrelevant.
Conclusion: the candidate case (i) addresses a wholly different legal field, (ii) involves unrelated legal principles, and (iii) provides no substantive assistance for resolving the query case. Therefore, the correct conclusion is: "This case would not realistically help someone dealing with the issue in the query case" → Label 0</td></tr>
</table>

<table>
<tr><th colspan="4">Example 2</th></tr>
<tr><td>Query ID
ECLI:EU:C:2018:473</td><td>Query date
20/06/2018</td><td>Candidate ID
ECLI:EU:T:2011:121</td><td>Candidate date
24/03/2011</td></tr>
<tr><td colspan="2">Query title: UAB “Enteco Baltic“ v Muitinės departamentas prie Lietuvos Respublikos finansų ministerijos</td><td colspan="2">Candidate title: Cybergun SA v Office for Harmonisation in the Internal Market (Trade Marks and Designs) (OHIM)</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">The case involves UAB “Enteco Baltic”, a Lithuanian company that imported fuel from Belarus and intended to supply it to purchasers in other EU Member States. Enteco Baltic claimed VAT exemption on importation under Article 143(1)(d) of the VAT Directive, arguing that the goods were subsequently supplied within the EU. The Lithuanian authorities refused the exemption, citing issues with the evidence of transport and the fact that the goods were sometimes supplied to different purchasers than initially declared, and also raised concerns about potential tax evasion. The referring court asked the Court of Justice of the European Union to interpret the relevant VAT Directive provisions. The CJEU clarified that the exemption is subject to the substantive conditions of the subsequent intra-Community supply being met and that certain documents like e-AD and CMR consignment notes can serve as evidence of transport. It also ruled that the exemption should not be refused solely due to a change in the intended purchaser, provided the importer acted in good faith and informed the authorities, and that the principle of legal certainty protects importers acting in good faith from being penalised for the purchaser's tax evasion if they took all reasonable steps to prevent it. The Court also clarified that the definition of 'supply of goods' is uniform across the directive and that authorities are not obliged to collect information only accessible to them.</td><td colspan="2">Cybergun SA sought to register the word mark AK 47 for goods in Class 28. The Office for Harmonisation in the Internal Market (OHIM) initially rejected the application based on the descriptive character of the mark under Article 7(1)(c) of Regulation (EC) No 207/2009. However, the Board of Appeal annulled the Cancellation Division's decision and declared the Community trade mark invalid. Cybergun appealed this decision to the General Court. The General Court examined the appeal, considering the functional continuity between OHIM's units and the scope of the Board of Appeal's review. The Court ultimately dismissed the action, upholding the Board of Appeal's decision that the mark AK 47 was indeed descriptive for the goods in question and therefore constituted an absolute ground for refusal under Article 7(1)(c) and Article 52(1)(a) of Regulation (EC) No 207/2009.</td></tr>
<tr><td colspan="4">Correct label: Label 0 – Not relevant</td></tr>
<tr><td colspan="4">Rationale: the candidate case is classified as Label 0 because it pertains to a fundamentally different branch of EU law and does not engage with the same legal issue as the query case. The query focuses on VAT law, in particular the requirements for exemption from import VAT and the evidence and good faith conditions linked to intra-Community supplies. The candidate case deals with EU trademark law, specifically the assessment of descriptiveness and the invalidity of a trade mark under Regulation No 207/2009. As a result, there is no meaningful common ground in terms of legal principles, interpretative framework, or reasoning, and the candidate would not assist a legal expert in resolving the query case.
Conclusion: the candidate case (i) falls within a different area of law, (ii) relies on distinct and unrelated legal rules, and (iii) offers no practical value for addressing the issue raised in the query case. Therefore, the correct conclusion is: “This case would not realistically help someone dealing with the issue in the query case” → Label 0</td></tr>
</table>

<table>
<tr><th colspan="4">Example 3</th></tr>
<tr><td>Query ID
ECLI:EU:T:1998:213</td><td>Query date
16/09/1998</td><td>Candidate ID
ECLI:EU:F:2012:184</td><td>Candidate date
12/12/2012</td></tr>
<tr><td colspan="2">Query title: International Express Carriers Conference (IECC) v Commission of the European Communities</td><td colspan="2">Candidate title: Maria Concetta Cerafogli v European Central Bank (ECB)</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">The International Express Carriers Conference (IECC) filed a complaint with the Commission in 1988 concerning practices related to 'remailing' by public postal operators, alleging breaches of Articles 85 and 86 of the EC Treaty. After a period of correspondence, the Commission informed the IECC in September 1994 that it did not intend to uphold the Article 85 aspect of the complaint and invited observations. The IECC then requested the Commission to act on the complaint as a whole. When the Commission did not respond within a reasonable time, the IECC brought an action for failure to act. Subsequently, the Commission sent a final decision rejecting the Article 85 part and a letter addressing the Article 86 part. The Court of First Instance noted that the Commission's actions after the case was brought rendered the action devoid of purpose. Consequently, the Court declared that there was no longer any need to proceed to judgment on the substance of the case. Regarding costs, given that the Commission acted after the proceedings were initiated and the IECC's action was deemed premature in part, the Court ordered each party to bear its own costs.</td><td colspan="2">Ms. Cerafogli, an ECB staff member, filed a complaint alleging psychological harassment and discrimination, leading to an administrative inquiry. The ECB's Executive Board adopted a decision concluding the inquiry, finding the allegations unsubstantiated. Ms. Cerafogli appealed this decision, but her appeal was rejected. She then brought this action before the Civil Service Tribunal, seeking annulment of the ECB's decision and compensation for damages. The Tribunal examined several pleas, including alleged breaches of the rights of the defence, procedural irregularities in the inquiry, manifest errors of assessment in the inquiry report, violation of the concept of psychological harassment, and breach of the duty to provide assistance. The Tribunal largely dismissed the applicant's claims, finding most of her arguments unfounded and noting that while some procedural aspects might have been imperfect, they did not constitute manifest errors that would invalidate the ECB's decision. The Tribunal also dismissed the claims for compensation, partly due to previous judgments in related cases and the nature of the claims. The action was ultimately dismissed.</td></tr>
<tr><td colspan="4">Correct label: Label 0 – Not relevant</td></tr>
<tr><td colspan="4">Rationale: The candidate case is assigned Label 0 because it relates to a completely different legal domain and does not address the same type of legal issue as the query case. The query concerns EU competition law and procedural aspects of a complaint before the Commission, specifically an action for failure to act under Articles 85 and 86 EC. In contrast, the candidate case deals with EU civil service law, focusing on staff disputes within an EU institution, including allegations of psychological harassment, procedural fairness in administrative inquiries, and claims for damages. There is no overlap in legal framework, substantive rules, or reasoning, and the candidate case would not provide any useful guidance for addressing the issues raised in the query case.
Conclusion: the candidate case (i) belongs to a different area of EU law, (ii) involves distinct and unrelated legal principles, and (iii) offers no meaningful assistance for resolving the query case. Therefore, the correct conclusion is: "This case would not realistically help someone dealing with the issue in the query case" → Label 0</td></tr>
</table>

5.2 Label 1: marginally relevant

Label 1 should be assigned when the candidate case is only loosely or broadly related to the query case and does not address the same legal issue or provide substantial support for resolving it. This label therefore applies to situations in which there is a recognizable connection between the two cases, but that connection remains limited. For instance, the candidate case may belong to the same broad legal domain or involve similar legal language. It may also refer to the same Treaty article or legal framework or raise issues adjacent to those in the query case. However, in these situations, the overlap is not strong enough for the candidate to be considered as materially useful in any substantial sense.

The core meaning of Label 1 thus revolves (among others) around the following elements:

- There is a genuine, albeit limited, connection between the candidate case and the query case
- The connection is stronger than mere coincidence or an overly circumstantial overlap
- The candidate would only be of marginal or indirect use to a legal expert working on the query
- …

Cases in this category often have one or more of the following features:

- They belong to the same broad legal field
- They refer to similar concepts or legal provisions
- They touch on related themes without actually addressing the same legal issue
- …

The key point here is that the candidate is too different in context to offer real legal guidance on the query case. A Label 1 case might be useful in a limited way by providing background context or showing how a broad Treaty provision has been treated in a different setting. However, it would not normally be the kind of case that a legal expert would cite as a serious authority on the specific issue in the query case. For instance, two cases may discuss free movement in entirely different legal contexts. Another example would be if the query and candidate both concerned procedural aspects of EU law, but not the same procedural problem. Similarly, two cases might involve cross-border elements without sharing the same legal issue or doctrinal analysis.

The difference between Label 0 and Label 1 is that Label 1 requires some real connection, even if limited. A candidate should receive Label 1 rather than Label 0 when there is at least a plausible reason why someone might see the cases as related, even though the relationship remains weak.

You should pick ***Label 1*** *if, after reading both the query and candidate, your conclusion is: "****This case has some connection to the issue in the query case, but it would not realistically provide meaningful guidance for resolving it****".* Several illustrative situations of Label 1 relevance are outlined below.

<table>
<tr><th colspan="4">Example 1</th></tr>
<tr><td>Query ID
ECLI:EU:C:2002:4</td><td>Query date
08/01/2002</td><td>Candidate ID
ECLI:EU:C:2004:714</td><td>Candidate date
11/11/2004</td></tr>
<tr><td colspan="2">Query title: Denkavit Nederland BV v Minister van Landbouw, Natuurbeheer en Visserij and Voedselvoorzieningsin- en verkoopbureau</td><td colspan="2">Candidate title: Maatschap Toeters and M.C. Verberk v Productschap Vee en Vlees</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">This case involves a preliminary ruling requested by the Netherlands Administrative Court for Trade and Industry concerning the powers of Member States during the March 1996 BSE crisis. Denkavit Nederland BV challenged decisions requiring the slaughter of its United Kingdom-origin calves, arguing that the Netherlands authorities lacked the legal basis to order slaughter and dictate its timing, as the matter was governed by EU regulations (Directive 90/425 and Regulation No 717/96). Denkavit argued that Article 8(1)(a) of Directive 90/425 was not applicable as the calves themselves were not diseased, and that Regulation No 717/96 allowed producers to determine slaughter timing. The Court of Justice ruled that, in response to the BSE crisis and based on scientific uncertainty, Member States were entitled under Article 8(1)(a) of Directive 90/425 to order the slaughter of young bovine animals originating from the United Kingdom and to determine the timing of that slaughter. The Court found that Regulation No 717/96, which provided for Community co-financing of calf destruction, did not replace or restrict the Member States' powers under Directive 90/425 to implement necessary public health measures, and that the measure was objectively justified on public health grounds, thus not violating the principle of non-discrimination.</td><td colspan="2">This case involves two applicants, Maatschap Toeters and M.C. Verberk, whose applications for an early marketing premium for veal calves were rejected by the Productschap Vee en Vlees (Cattle and Meat Board) for being lodged late. The referring court questioned the interpretation of Community rules on calculating time-limits, specifically Regulation No 1182/71, and the validity of Article 50a of Regulation No 3886/92, which imposed a total exclusion from the premium for exceeding the application period, regardless of the extent of the delay. The Court of Justice clarified that time-limits expressed in weeks end on the same day of the week as the day the event occurred, and that national procedural rules for determining the lodging of applications cannot override the uniform Community rule. The Court also examined the proportionality of the total exclusion from the premium for late applications, concluding that, given the aims of market monitoring and price stability in the beef and veal sector, particularly in light of the BSE crisis, the legislator had not manifestly infringed the principle of proportionality.</td></tr>
<tr><td colspan="4">Correct label: Label 1 – Marginally relevant</td></tr>
<tr><td colspan="4">Rationale: the candidate case is assigned Label 1 because, although it operates within a related regulatory context, it does not address the same legal issue as the query case. The query concerns the scope of Member States' powers to adopt public health measures during the BSE crisis under EU veterinary legislation, particularly the legality of ordering and timing the slaughter of animals. By contrast, the candidate case focuses on the interpretation of procedural rules governing time-limits for applications and the proportionality of penalties for late submission under EU agricultural regulations. While both cases arise in the broader context of the beef and veal sector and are linked indirectly to the BSE crisis, the overlap remains contextual rather than substantive. The legal questions, principles, and reasoning differ significantly, limiting the usefulness of the candidate case for resolving the issue in the query case.
Conclusion: the candidate case (i) shares a general regulatory and factual background with the query case, (ii) refers to related policy concerns within EU agricultural law, but (iii) does not address the same legal issue or provide meaningful doctrinal guidance. Therefore, the correct conclusion is: "This case has some connection to the issue in the query case, but it would not realistically provide meaningful guidance for resolving it" → Label 1</td></tr>
</table>

<table>
<tr><th colspan="4">Example 2</th></tr>
<tr><td>Query ID
ECLI:EU:C:1987:284</td><td>Query date
16/06/1987</td><td>Candidate ID
ECLI:EU:C:2006:109</td><td>Candidate date
16/02/2006</td></tr>
<tr><td colspan="2">Query title: Commission of the European Communities v Italian Republic</td><td colspan="2">Candidate title: Carmen Sarkatzis Herrero v Instituto MadrileÃ±o de la Salud (Imsalud)</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">The European Commission brought an action against the Italian Republic, alleging that Italy had failed to fulfil its obligations under Article 48 of the EEC Treaty and Regulation No 1612/68 by discriminating against non-Italian researchers working for the Consiglio Nazionale delle Ricerche (CNR) in favour of Italian researchers regarding conditions of work and employment. The Court first examined whether the research posts at the CNR qualified as 'employment in the public service' under Article 48(4), concluding that they did not, as they did not involve the exercise of public powers or the safeguarding of the general interests of the state. The Court clarified that while Member States can reserve certain public service posts for their nationals, this exception cannot be used to generally debar nationals of other Member States from posts not falling under this exception. The Court found that the discriminatory treatment of non-Italian researchers regarding job security, career progression, pay, and pensions constituted a breach of the principle of non-discrimination under Article 48(2) and Article 7(1) and (4) of Regulation No 1612/68. Consequently, the Court declared that Italy had failed to fulfil its obligations.</td><td colspan="2">Ms Carmen Sarkatzis Herrero, a temporary servant, was appointed to a permanent official post while on maternity leave. Spanish law required her to take up the post within a month, and her seniority was to be calculated from the date she actually started working, after her maternity leave concluded. She argued this constituted discrimination on grounds of sex, contrary to Directive 76/207/EEC. The Court of Justice, examining Directive 76/207, found that deferring the start of an official's career and not accounting for maternity leave in seniority calculations constitutes unfavourable treatment. The Court clarified that the aim of the directive is substantive equality, meaning that maternity leave should not negatively impact an individual's career progression or rights, regardless of whether it affects an existing or a new employment relationship. Therefore, the directive precludes national laws that do not afford women on maternity leave the same rights as other successful competition applicants regarding access to an official career and seniority calculation.</td></tr>
<tr><td colspan="4">Correct label: Label 1 – Marginally relevant</td></tr>
<tr><td colspan="4">Rationale: the candidate case is assigned Label 1 because it shares a general connection with the query case in that both concern the principle of non-discrimination in employment within EU law, but they do not address the same legal issue. The query focuses on nationality-based discrimination and the scope of the “public service” exception under free movement of workers provisions, whereas the candidate case deals with sex discrimination, specifically the treatment of maternity leave in relation to career progression and seniority under Directive 76/207. Although both cases engage with equality in employment, they rely on different legal frameworks, protected grounds, and reasoning, meaning the connection remains at a broad and contextual level rather than a substantive one.
Conclusion: the candidate case (i) relates to a similar general principle of non-discrimination in EU employment law, (ii) operates within a comparable legal context, but (iii) does not address the same type of discrimination or legal question as the query case. Therefore, the correct conclusion is: “This case has some connection to the issue in the query case, but it would not realistically provide meaningful guidance for resolving it” → Label 1</td></tr>
</table>

<table>
<tr><th colspan="4">Example 3</th></tr>
<tr><td>Query ID
ECLI:EU:T:1995:64</td><td>Query date
06/04/1995</td><td>Candidate ID
ECLI:EU:T:1999:246</td><td>Candidate date
07/10/1999</td></tr>
<tr><td colspan="2">Query title: Ferriere Nord SpA v Commission of the European Communities</td><td colspan="2">Candidate title: Irish Sugar plc v Commission of the European Communities</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">Ferriere Nord SpA applied for the annulment of a Commission decision imposing a fine for infringing Article 85(1) of the EEC Treaty through agreements on prices and quotas for welded steel mesh. The applicant admitted participation but argued its role was minor, its market position weak, and that the agreements did not appreciably affect competition or trade, nor did it intend to infringe the rules. The Court of First Instance rejected these arguments, finding that Article 85(1) applies if agreements have the object or effect of restricting competition and are capable of affecting trade between Member States, regardless of the individual undertaking's market share or intent. The Court also dismissed claims of a breach of the principle of equal treatment and misuse of powers, finding the fine calculation and treatment of the applicant to be justified based on the evidence and relevant case law. The application was therefore dismissed.</td><td colspan="2">Irish Sugar plc (applicant) challenged a European Commission decision finding it had infringed Article 86 of the EC Treaty (now Article 82 EC) by abusing a dominant position in the Irish sugar market. The Commission imposed a fine of ECU 8.8 million. The applicant contested the finding of a dominant position, particularly a joint dominant position with its subsidiary SDL before February 1990, and argued that its practices, including selective pricing, border rebates, product swaps, and fidelity rebates, did not constitute abuses or were justified. The Court of First Instance partially annulled the Commission's decision regarding selectively low prices between 1986 and 1988 and reduced the fine. However, it upheld the Commission's findings regarding other abuses, such as border rebates, fidelity rebates, and product swaps, and rejected arguments concerning the applicant's rights of defence and the Commission's procedural diligence. The Court found that Irish Sugar plc, holding over 90% of the industrial sugar market and over 88% of the retail sugar market, held a dominant position and that its practices, particularly discriminatory pricing and loyalty-inducing rebates, were abusive as they restricted competition and harmed consumers.</td></tr>
<tr><td colspan="4">Correct label: Label 1 – Marginally relevant</td></tr>
<tr><td colspan="4">Rationale: the candidate case is assigned Label 1 because, although both cases fall within EU competition law and involve challenges to Commission decisions imposing fines, they concern different legal provisions and distinct types of infringements. The query case deals with Article 85(1) (now Article 101 TFEU), focusing on anti-competitive agreements such as price-fixing and quotas, whereas the candidate case concerns Article 86 (now Article 102 TFEU), addressing abuse of a dominant position through practices like discriminatory pricing and loyalty rebates. While both cases relate to the enforcement of competition rules and share a common legal framework, they involve different doctrines, analytical approaches, and legal tests. As a result, the connection remains general rather than substantively useful for resolving the specific issue in the query case.
Conclusion: the candidate case (i) belongs to the same broad field of EU competition law, (ii) involves related enforcement context and regulatory objectives, but (iii) addresses a different type of infringement and legal analysis than the query case. Therefore, the correct conclusion is: “This case has some connection to the issue in the query case, but it would not realistically provide meaningful guidance for resolving it” → Label 1</td></tr>
</table>

5.3 Label 2: substantially relevant

Assign Label 2 when the candidate case is clearly and meaningfully related to the query case but does not qualify as a direct match. It should be used for cases that, while not qualifying as a direct match, share important legal substance with the query case and would be useful to a legal expert. The candidate case may involve the same doctrine, a closely related legal principle or a similar

interpretative question, but differ in terms of its factual background, procedural setting or exact legal formulation.

The core meaning of Label 2 thus revolves (among others) around the following elements:

- The candidate case is materially useful for understanding or analyzing the query case
- The candidate case shares significant legal substance with the query case
- The candidate does not address the same issue in a sufficiently direct or specific way to count as directly relevant
- …

Cases in this category often have one or more of the following features:

- They apply the same legal principle, but in a different factual context
- They address a closely related legal issue
- They develop reasoning that could help to interpret the issue in the query case
- They provide doctrinal support that is clearly relevant, even if not directly determinative

Label 2 is thus the category for cases that are genuinely valuable, but not fully "on point". While such cases may not be the most appropriate precedent to cite, they are still considered important or useful in legal analysis. This usefulness could revolve around clarifying a principle that is also central to the query case, demonstrating analogous reasoning, addressing a related limitation or exception, or belonging to the doctrinal framework within which the query issue must be analyzed. In other words, this level of relevance is substantial.

The difference between Label 1 and Label 2 is especially important. Label 1 should be used where the connection is mostly general or contextual, whereas Label 2 should be chosen when the candidate case is clearly useful at the level of legal doctrine, principles, or reasoning. A common mistake to avoid is treating any case that cites the same Treaty article as being at least strongly related. This is too broad, since the same Treaty article can arise in very different legal contexts. What matters is not the citation alone, but its role in the legal issue under examination. The difference between Labels 1 and 2 thus lies in the depth and usefulness of the connection. If the candidate would realistically be discussed as part of serious legal analysis, Label 2 is appropriate. If it would only be mentioned as background or context, then Label 1 is better. In the same vein, it would also be a mistake to reserve Label 2 only for near-identical cases. This would make the scale too narrow and collapse many genuinely useful cases into Label 1. Label 2 should be used whenever the candidate is clearly important for legal analysis, even if it is not a direct precedent for the specific issue in question.

You should select ***Label 2*** *if, after reading both the query and candidate, your conclusion is: "****This case is clearly relevant and would be useful for legal analysis in relation to the query case, despite not constituting a direct precedent****".* Three example query-candidate pairs under Label 2 are listed below.

<table>
<tr><th colspan="4">Example 1</th></tr>
<tr><td>Query ID
ECLI:EU:C:1996:267</td><td>Query date
04/07/1996</td><td>Candidate ID
ECLI:EU:C:1991:387</td><td>Candidate date
16/10/1991</td></tr>
<tr><td colspan="2">Query title: Hüpeden & Co. KG v Hauptzollamt Hamburg-Jonas</td><td colspan="2">Candidate title: Hauptzollamt Hamburg-Jonas v Werner Faust Offene Handelsgesellschaft KG</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">The case involves a dispute over additional import amounts levied on preserved cultivated mushrooms from non-member countries under Council Regulation (EEC) No 1796/81. The Finanzgericht Hamburg questioned the validity of this regulation, specifically Article 2(1), due to a potential breach of the principle of proportionality. The Court of Justice examined the regulation's objective, which was to protect the Community market from import disturbances. It found that the flat-rate additional amount of ECU 160 per 100 kg net, set without regard to the quality of the mushrooms or the specific circumstances of import, was excessive. This amount, which was maintained at a level similar to previous protective measures and represented a significant portion of the import value, was deemed disproportionate as it went beyond the stated objective and effectively prohibited imports. The Court rejected arguments that the regulation's long-term market management nature justified the high amount or that it was less restrictive than a complete import ban. Consequently, the Court ruled that Article 2(1) of Regulation No 1796/81 was invalid concerning the level of the additional amount set.</td><td colspan="2">The case involves a dispute over an additional amount levied on imports of preserved mushrooms under Commission Regulation (EEC) No 3429/80. The Hauptzollamt Hamburg-Jonas sought to recover this amount from Werner Faust for mushrooms released into free circulation without a valid import licence. The Bundesfinanzhof referred two questions to the Court of Justice: first, whether the additional amount applies to imports without a valid licence, and second, whether the regulation's fixed additional amount was lawful under the principle of proportionality. The Court ruled that the additional amount must be levied even if the lack of a valid licence is discovered after release into free circulation, as this upholds the system's effectiveness. However, the Court found the regulation invalid regarding the level of the additional amount, deeming it disproportionate because it was fixed at a flat rate corresponding to the cost of grade 1 mushrooms, unfairly penalizing importers of lower-grade products and exceeding the objective of preventing market disturbances.</td></tr>
<tr><td colspan="4">Correct label: Label 2 – Substantially relevant</td></tr>
<tr><td colspan="4">Rationale: the candidate case is assigned Label 2 because it shares a strong legal and factual connection with the query case, although it is not an exact match. Both cases concern the imposition of additional import amounts on preserved mushrooms under EU regulations and examine the validity of those measures in light of the principle of proportionality. They involve similar regulatory frameworks, comparable factual contexts, and closely related legal questions about whether flat-rate additional charges exceed what is necessary to achieve market protection objectives. However, they arise under different regulations and procedural circumstances, and the specific legal questions are not identical. Despite these differences, the reasoning in the candidate case is clearly relevant and would be useful for analyzing the proportionality issue in the query case.
Conclusion: the candidate case (i) addresses a closely related legal issue within the same regulatory context, (ii) applies the same legal principle of proportionality in a comparable setting, and (iii) provides reasoning that is directly useful for analyzing the query case, even if it is not an exact match. Therefore, the correct conclusion is: "This case is clearly relevant and would be useful for legal analysis in relation to the query case, despite not constituting a direct precedent" → Label 2</td></tr>
</table>

<table>
<tr><th colspan="4">Example 2</th></tr>
<tr><td>Query ID
ECLI:EU:T:2016:468</td><td>Query date
13/09/2016</td><td>Candidate ID
ECLI:EU:T:2017:153</td><td>Candidate date
09/03/2017</td></tr>
<tr><td colspan="2">Query title: Globo Comunicação e Participações S/A v European Union Intellectual Property Office</td><td colspan="2">Candidate title: Puma SE v European Union Intellectual Property Office</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">Globo Comunicação e Participações S/A applied to register a sound mark, represented graphically as a musical notation, for various goods and services including DVDs, software, applications, television broadcasting, and entertainment services. EUIPO's examiner and subsequently its Board of Appeal refused registration based on Article 7(1)(b) of Regulation No 207/2009, finding the sound mark to be devoid of distinctive character due to its simplicity and banality, resembling a common telephone ringtone. The applicant argued that the mark, despite its brevity, had distinctive elements and that similar marks had been registered elsewhere. The General Court upheld EUIPO's decision, finding that the sound mark, as represented and perceived, was too simple and commonplace to function as an indicator of commercial origin for the goods and services in question. The Court also rejected the applicant's arguments regarding the admissibility of new evidence and the comparison with other registered marks, emphasizing that EU trade mark law is an autonomous system and that previous registrations do not automatically validate a mark lacking inherent distinctiveness. The Court concluded that the Board of Appeal had not erred in its assessment of the lack of distinctive character.</td><td colspan="2">Puma SE sought to register the word mark FOREVER FASTER as an EU trade mark for footwear and sporting goods. The EUIPO examiner and subsequently the Board of Appeal refused registration, finding the mark to be devoid of distinctive character under Article 7(1)(b) of Regulation No 207/2009. They considered the mark to be a simple advertising slogan conveying a laudatory message about the goods' ability to enhance speed over time, which the relevant public would perceive as promotional rather than an indicator of commercial origin. Puma argued that the Board of Appeal misinterpreted the meaning of the words, applied incorrect criteria for assessing slogans, and failed to consider earlier registrations and foreign approvals. The General Court upheld the Board of Appeal's decision, finding that the mark, when taken as a whole, was a descriptive laudatory statement commonly used in the sporting sector and lacked the necessary distinctiveness to function as an EU trade mark. The Court also rejected Puma's arguments regarding equal treatment and sound administration, stating that previous registrations or foreign approvals do not guarantee EUIPO registration if the mark itself does not meet EU trade mark law requirements.</td></tr>
<tr><td colspan="4">Correct label: Label 2 – Substantially relevant</td></tr>
<tr><td colspan="4">Rationale: the candidate case is assigned Label 2 because it is clearly connected to the query case at the level of legal doctrine and analytical framework, even though it does not concern the exact same type of mark. Both cases arise under EU trade mark law and involve the application of Article 7(1)(b) of Regulation No 207/2009, specifically the assessment of whether a mark lacks distinctive character. They also share similar reasoning regarding how the relevant public perceives signs, the treatment of simple or promotional elements, and the irrelevance of prior registrations in determining distinctiveness. However, the query concerns a sound mark, while the candidate deals with a word mark in the form of a slogan, meaning the factual context and specific assessment differ. Despite this, the candidate case provides useful interpretative guidance on the concept of distinctiveness and would be relevant for legal analysis.
Conclusion: the candidate case (i) applies the same legal provision and core test, (ii) develops closely related reasoning on the assessment of distinctive character, and (iii) offers meaningful support for analyzing the query case, even if the type of mark differs. Therefore, the correct conclusion is: "This case is clearly relevant and would be useful for legal analysis in relation to the query case, despite not constituting a direct precedent" → Label 2</td></tr>
</table>

<table>
<tr><th colspan="4">Example 3</th></tr>
<tr><td>Query ID
ECLI:EU:C:2020:954</td><td>Query date
25/11/2020</td><td>Candidate ID
ECLI:EU:C:2019:936</td><td>Candidate date
07/11/2019</td></tr>
<tr><td colspan="2">Query title: Banca B. SA v A.A.A.</td><td colspan="2">Candidate title: Nationale Maatschappij der Belgische Spoorwegen (NMBS) v Mbutuku Kanyeba and Others</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">This preliminary ruling request from the Romanian Court of Appeal Cluj concerns the interpretation of Article 6(1) of the Unfair Contract Terms Directive (93/13/EEC). The case involves a loan agreement where the terms for calculating the variable interest rate were found to be unfair. The referring court seeks guidance on the national court's powers after identifying such unfair terms, particularly when the contract cannot continue without them and national law offers no direct replacement. The Court of Justice clarified that while national courts cannot modify unfair terms directly, they must take all necessary measures to protect the consumer from adverse consequences of contract annulment. This can include inviting parties to negotiate a new interest rate calculation method within a court-defined framework, ensuring a balance between parties and upholding consumer protection objectives.</td><td colspan="2">This case involves preliminary ruling requests concerning rail passenger rights and unfair contract terms. The Belgian railway company (NMBS/SNCB) sued passengers for travelling without tickets, claiming surcharges based on its general conditions of carriage. The referring court questioned whether boarding a train without a ticket constitutes a ‘transport contract’ under EU Regulation No 1371/2007 and whether the NMBS’s general conditions, particularly penalty clauses for fare evasion, are subject to the Unfair Terms in Consumer Contracts Directive (93/13/EEC). The Court of Justice ruled that a transport contract exists when a passenger boards a train for travel, even without a ticket, as the ticket is merely evidence of the contract. However, the Court clarified that the Unfair Terms Directive does not apply to terms reflecting mandatory statutory or regulatory provisions. If a term is found unfair and is not covered by this exclusion, national courts must not modify the term but rather declare it void, unless the contract cannot subsist without it and annulling it would harm the consumer.</td></tr>
<tr><td colspan="4">Correct label: Label 2 – Substantially relevant</td></tr>
<tr><td colspan="4">Rationale: the candidate case is assigned Label 2 because it shares a clear and meaningful legal connection with the query case, even though the factual context and specific legal questions are not identical. Both cases concern the interpretation and application of the Unfair Terms in Consumer Contracts Directive (93/13/EEC), particularly the consequences of identifying unfair contract terms and the limits on national courts’ powers in such situations. They both address the principle that unfair terms should not be modified by courts and explore the conditions under which a contract may continue or be annulled. However, the query focuses on unfair terms in a loan agreement and the possibility of replacing them, while the candidate case deals with transport contracts and penalty clauses in railway conditions. Despite these contextual differences, the legal reasoning and principles are closely aligned and would be useful for analysis.
Conclusion: the candidate case (i) applies the same directive and core legal framework, (ii) engages with closely related questions about the treatment of unfair terms and the role of national courts, and (iii) provides reasoning that is clearly useful for analyzing the query case, even if the factual setting differs. Therefore, the correct conclusion is: “This case is clearly relevant and would be useful for legal analysis in relation to the query case, despite not constituting a direct precedent” → Label 2</td></tr>
</table>

5.4 Label 3: directly relevant

Label 3 should be chosen when the candidate case is directly relevant to the query case. This is the highest possible relevance label, so it should be reserved for candidates that very closely match the query in terms of the legal issue, doctrinal significance, and practical usefulness. A Label 3 candidate is one that a legal expert would regard as a direct precedent or highly analogous authority, or a case that should be retrieved for the query.

The core meaning of Label 3 thus revolves (among others) around the following elements:

- The candidate case addresses the same (or a very closely aligned) legal issue as the query case
- The candidate case is highly useful for analyzing or resolving the issue in the query case
- The reasoning deployed in the candidate case is directly applicable or strongly analogous in a legally meaningful way to the query case

Cases in this category often have one or more of the following features:
- They pertain to the same type of legal question
- They address the same rule, doctrine, or interpretative problem
- They involve a closely comparable procedural or legal setting
- They offer reasoning that could directly inform or support the treatment of the query case

Note that a Label 3 case may differ in the facts, but the legal issue must be closely aligned. The focus is on legal usefulness at the highest level. A Label 3 candidate is one that would likely be among the most important cases retrieved for the query; it is the type of case that would be expected in a strong retrieval result or that a legal practitioner might cite directly.

Although Label 3 is an important category, it should not be applied too generously. Not every case that appears highly relevant should automatically receive the top score. The question is whether the candidate is directly relevant, rather than just "quite useful". A cautious approach is therefore warranted. Label 3 should be reserved for cases where the strength of the match is clear.

The difference between Labels 2 and 3 is essentially one of degree of alignment. Label 2 should be used when the candidate is highly relevant, but not a direct match. This may be because the legal issue is similar (rather than identical), the procedural approach differs, the factual context alters the role of the legal principle, or the candidate offers a useful analogy rather than definitive relevance. Conversely, Label 3 should be used when the query and candidate case both essentially concern the same type of legal issue or engage with substantially the same legal question under a similar doctrinal framework.

You should opt for ***Label 3*** *if, after reading both the query and candidate, your conclusion is essentially: "****This case directly addresses the same issue and would be a key authority for resolving it****"*. Several examples of cases belonging to this category include are mentioned below.

<table>
<tr><th colspan="4">Example 1</th></tr>
<tr><td>Query ID
ECLI:EU:T:1996:126</td><td>Query date
24/09/1996</td><td>Candidate ID
ECLI:EU:T:2000:255</td><td>Candidate date
08/11/2000</td></tr>
<tr><td colspan="2">Query title: Société Louis Dreyfus & Cie v Commission of the European Communities</td><td colspan="2">Candidate title: Société anonyme Louis Dreyfus & Cie, Glencore Grain Ltd and Compagnie Continentale (France) v Commission of the European Communities</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">This case involves actions brought by three companies (Louis Dreyfus, Glencore Grain, and Compagnie Continentale) against the European Commission’s decision of 1 April 1993. The Commission refused to approve amendments to contracts for the supply of wheat, financed by a Community loan to the former Soviet Union, arguing that the amendments did not comply with conditions regarding free competition and market prices. The applicants sought both annulment of the Commission's decision and compensation for damages. The Court of First Instance initially dismissed the annulment actions as inadmissible due to being time-barred or lacking direct and individual concern. However, the Court of Justice later referred the cases back for judgment on the substance of the claims. The Court of First Instance ultimately rejected the claims for annulment, finding that the Commission's decision was properly reasoned and that the applicants had not demonstrated a breach of the principle of legitimate expectations or free competition. The claims for damages were also dismissed, as the applicants failed to prove wrongful conduct by the Commission, particularly since the underlying pleas for annulment were rejected.</td><td colspan="2">This case involves four joined actions brought by Louis Dreyfus, Glencore Grain, and Compagnie Continentale (France) against the European Commission's decision of 1 April 1993 refusing to approve amendments to contracts for the supply of wheat to the former Soviet Union under a Community loan facility. The applicants sought annulment of the decision and compensation for damages. The Commission argued that the actions were inadmissible due to time limits and that the amendments were unlawful because they were negotiated without free competition and did not reflect market prices. The applicants countered that they had received assurances from the Commission and that the procedure followed was adequate. The Court of First Instance rejected the claims for annulment as inadmissible due to time limits, finding that the applicants did not have precise knowledge of the decision's grounds from the initial telex received. The Court also rejected the claims for compensation, finding no wrongful conduct by the Commission, as the applicants failed to demonstrate that the conditions for approving the contract amendments, particularly regarding free competition, were met. The plea alleging a breach of the duty to state reasons was also rejected, as the decision clearly outlined the Commission's reasoning regarding competition and pricing.</td></tr>
<tr><td colspan="4">Correct label: Label 3 – Directly relevant</td></tr>
<tr><td colspan="4">Rationale: the candidate case is assigned Label 3 because it concerns essentially the same dispute, parties, legal issues, and Commission decision as the query case. Both cases arise from actions brought by the same companies against the same Commission decision refusing to approve amendments to wheat supply contracts financed by a Community loan to the former Soviet Union. They involve identical legal questions regarding admissibility, compliance with conditions of free competition and market pricing, and claims for annulment and damages. The legal and factual alignment is extremely close, and the reasoning in the candidate case directly addresses the issues raised in the query case, making it highly authoritative and directly applicable.
Conclusion: the candidate case (i) concerns the same parties and underlying Commission decision, (ii) addresses the same legal questions and procedural context, and (iii) provides directly applicable reasoning for resolving the query case. Therefore, the correct conclusion is: “This case directly addresses the same issue and would be a key authority for resolving it” → Label 3</td></tr>
</table>

<table>
<tr><th colspan="4">Example 2</th></tr>
<tr><td>Query ID
ECLI:EU:T:2008:213</td><td>Query date
18/06/2008</td><td>Candidate ID
ECLI:EU:F:2007:228</td><td>Candidate date
13/12/2007</td></tr>
<tr><td colspan="2">Query title: Sundholm v Commission</td><td colspan="2">Candidate title: Paulo Sequeira Wandschneider v Commission of the European Communities</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">This appeal concerns a judgment by the Civil Service Tribunal regarding an official's career development report and the appraisal procedure. The appellant argued that the appeal assessor's consultation with colleagues without hearing the official constituted an infringement of the rights of the defence. The Court of First Instance (Appeal Chamber) found that this consultation did not infringe the rights of the defence if the information obtained was not new or detrimental to the official. The appellant also attempted to introduce a new factual premise in the appeal, which was deemed inadmissible as it extended the subject-matter of the proceedings beyond the scope of the initial pleas. Consequently, the appeal was dismissed.</td><td colspan="2">The applicant, Paulo Sequeira Wandschneider, sought the annulment of his 2004 career development report and damages from the Commission, alleging procedural errors and manifest errors of assessment. He contested the roles of the countersigning officer and the reporting officer, the composition of the Joint Evaluation Committee, and the appeal assessor's decision. The Tribunal examined the procedures for drawing up the report, including the involvement of different reporting officers and the countersigning officer's role. It also considered the impact of a potentially conflicted committee member and the adequacy of the appeal assessor's reasoning. The Tribunal found no breach of the rights of the defence, as the applicant had opportunities to state his objections throughout the procedure. The court also assessed the consistency between descriptive comments and awarded marks in the report, concluding that any inconsistencies were not manifest. The applicant's claims were dismissed, with each party bearing its own costs.</td></tr>
<tr><td colspan="4">Correct label: Label 3 – Directly relevant</td></tr>
<tr><td colspan="4">Rationale: The candidate case is labeled with Label 3 because it addresses closely aligned legal issues within the same procedural and doctrinal framework as the query case. Both cases concern disputes involving EU civil service law, specifically challenges to career development reports and the appraisal process within the Commission. They examine similar questions regarding procedural fairness, including the role of different actors in the evaluation process and, importantly, the respect for the rights of the defence during appraisal procedures. The reasoning in the candidate case directly engages with whether procedural steps comply with those rights, which is central to the query case. Although the facts are not 100% identical, the legal issues and analytical approach are highly comparable, making the candidate case directly useful.
Conclusion: the candidate case (i) concerns the same area of EU civil service law and type of dispute, (ii) addresses closely aligned legal questions regarding appraisal procedures and rights of the defence, and (iii) provides reasoning that is directly applicable to the query case. Therefore, the correct conclusion is: "This case directly addresses the same issue and would be a key authority for resolving it" → Label 3</td></tr>
</table>

<table>
<tr><th colspan="4">Example 3</th></tr>
<tr><td>Query ID
ECLI:EU:C:2006:69</td><td>Query date
26/01/2006</td><td>Candidate ID
ECLI:EU:C:2017:309</td><td>Candidate date
27/04/2017</td></tr>
<tr><td colspan="2">Query title: Rijksdienst voor Sociale Zekerheid v Herbosch Kiere NV</td><td colspan="2">Candidate title: A-Rosa Flussschiff GmbH v Union de recouvrement des cotisations de sécurité sociale et d'allocations familiales d'Alsace (Urssaf), venant aux droits de l'Urssaf du Bas-Rhin and Sozialversicherungsanstalt des Kantons Graubünden</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">This case involves a dispute over social security contributions for Irish workers posted to Belgium by an Irish company. The Belgian social security authority (Rijksdienst) sought contributions from the Belgian client company (Herbosch Kiere), arguing that the Irish workers were effectively employed by Herbosch Kiere, not the Irish company that posted them. The key issue was the legal value of the E 101 certificates issued by Irish authorities, which certified that the workers remained subject to Irish social security law. The Court of Justice ruled that an E 101 certificate, as long as it is not withdrawn or declared invalid by the issuing authorities, is binding on the competent institutions and courts of the host Member State. Therefore, Belgian courts could not scrutinize the validity of the E 101 certificates concerning the existence of a direct relationship between the posting company and the worker, as this would undermine legal certainty and the principle of covering workers by only one social security system.</td><td colspan="2">This case involves a dispute over social security contributions in France for seasonal workers employed by a German company (A-Rosa) on ships operating exclusively in France. The workers were employed under Swiss law and held E 101 certificates issued by Switzerland, indicating Swiss social security law applied. The French URSSAF issued a recovery notice for French social security contributions. A-Rosa argued that the E 101 certificates were binding. The referring French court questioned the binding effect of an E 101 certificate when the worker's activities clearly did not fall within the exceptions for posted workers under Regulation No 1408/71. The Court of Justice ruled that an E 101 certificate, as long as it is not withdrawn or declared invalid, is binding on the host Member State's institutions and courts, even if the worker's activities do not strictly meet the conditions for exceptions like posting. The Court emphasized the principle of cooperation and legal certainty, stating that national courts cannot scrutinize the validity of the certificate themselves but must rely on the established procedures for resolving disputes between Member States' institutions, including recourse to the Administrative Commission or, ultimately, infringement proceedings.</td></tr>
<tr><td colspan="4">Correct label: Label 3 – Directly relevant</td></tr>
<tr><td colspan="4">Rationale: the candidate case is assigned Label 3 because it addresses the same core legal issue and applies the same doctrinal framework as the query case. Both cases concern the binding effect of E 101 certificates in the context of cross-border social security coordination under EU law and examine whether national authorities or courts of a host Member State may challenge the validity of such certificates. In both instances, the Court of Justice confirms that, as long as the certificate has not been withdrawn or declared invalid by the issuing authority, it is binding and cannot be unilaterally disregarded, emphasizing principles of legal certainty and mutual trust between Member States. The legal questions, applicable rules, and reasoning are therefore almost identical, making the candidate case directly on point.
Conclusion: the candidate case (i) concerns the same legal issue of the binding nature of E 101 certificates, (ii) applies the same legal principles within the same regulatory framework, and (iii) provides reasoning that is directly applicable to the query case. Therefore, the correct conclusion is: "This case directly addresses the same issue and would be a key authority for resolving it" → Label 3</td></tr>
</table>

6 Decision guidelines

While Section 5 defines what each label means, this section explains how to choose between them in practice, particularly when the correct label is unclear. Different aspects of a case may suggest

different labels, and these decision guidelines are intended to help you deal with such situations consistently.

6.1 Core decision rule

As mentioned several times throughout this document, at the heart of every annotation is a single leading question: "to what extent would this candidate case meaningfully help a legal expert address the issue raised in the query case?" This question should always take precedence over more superficial considerations. When applying this rule, it is helpful to first try to identify the core legal issue of the query case. Then, assess whether and how strongly the candidate case contributes to understanding or resolving that issue.

A more "tangible" way to approach this is to think in terms of the practical use of the candidate case:

- Would the candidate case be cited as a *direct precedent*? → likely Label 3
- Would the candidate case be used to *support or inform reasoning*? → likely Label 2
- Would the candidate case only provide *general background or context*? → likely Label 1
- Would the candidate case *not be used at all*? → likely Label 0

This core rule should guide all decisions, including those in complex or ambiguous situations.

For each query-candidate pair, both a case summary and the full text of the judgment are provided. In most cases, the summary contains all the information needed to make a well-reasoned annotation, so it is recommended that you rely on it as your primary source. However, if important aspects are unclear in the summary, you can consult the full text to clarify the legal issue or reasoning. This should be done selectively, as needed, rather than systematically for every case. The aim is to strike a balance between annotation efficiency and accuracy: rely on the summary where possible, but do not hesitate to consult the full text when doing so would meaningfully improve the quality of your judgement.

6.2 Priority rules

In some cases, different aspects of the candidate case could hint at different suitable labels. For instance, a case may share the same Treaty article but involve a different legal issue, or it may involve a similar issue in a different procedural context. When such issues arise, the following priority rules should be applied:

1. *The legal issue at stake takes precedence over everything else*. Even if other elements (e.g. terminology, legal provisions, institutional context) overlap, they should not outweigh a mismatch in the core issue. If the legal issue aligns closely, then this strongly supports a higher label.
2. *Substantive reasoning takes precedence over shared references to legal provisions*. References to Treaty articles or legal provisions should only influence the label if they are used in a similar way to address a comparable issue. Therefore, a case that cites the same provision but applies it in a wholly different context is usually not substantially relevant

3. *When in doubt, give preference to the lower label*. If two labels seem plausible and there is no clear reason to choose the higher one, it is preferable to select the lower label since doing so helps to avoid overestimating relevance, especially when choosing between Labels 2 and 3.

6.3 Handling ambiguity

Some cases are inherently difficult to classify. Such instances of ambiguity can arise when the legal issue is unclear or when multiple issues are present. In such cases, it is recommended that you always try to identify the core issue of the query. By extension:

- If relevance is partial, do not automatically assign a high label
- If different parts of the candidate case point in different directions, focus on the dominant or most important aspect

Ultimately, you should try to avoid overcomplicating your annotation decision. The purpose of these guidelines is especially to ensure consistent labelling.

6.4 Permissible and impermissible assumptions

We should also clarify which assumptions are permitted and which should be avoided while annotating.

Some types of assumptions are *permissible*:

- You may interpret the text using your understanding of EU law
- You can infer the core issue where it is reasonably clear from context
- You can rely on the reasoning and structure of the case as presented

Other types of assumptions are *impermissible*:

- You may not rely on external knowledge that is not reflected in the text
- You may not assume facts, arguments, or reasoning that are not present in the case
- You may not assign a higher relevance label because a case is well-known or frequently cited
- You may not infer connections based solely on shared terminology in the absence of substantive overlap

Fundamentally, your annotation judgement should be based on what is visible in the text and can be reasonably inferred from it, rather than on what you know from outside sources.

6.5 Edge cases

Some more specific guidelines are included below to help you properly deal with edge cases and explain how they should be handled.

- ***Edge case 1: same legal provision, but different issue***
    - Situation: two cases cite the same Treaty article but apply it in different legal contexts

- Resolution: the key question is how the provision functions in each case. If it is applied to the same or a closely aligned legal issue, a higher label is appropriate. If it serves a different legal issue, the case should generally be classified as Label 1 or 0.
- Example: two cases both refer to Article 2 TEU. In one case, it is invoked in the context of safeguarding the rule of law. In the other case, it is referenced in relation to non-discrimination. Despite relying on the same provision, the underlying legal issues differ, so the relevance is limited to Label 1.

- ***Edge case 2: same legal domain, but different legal question***
  - Situation: two cases pertain to the same legal domain (e.g., competition law) but address different problems (e.g., anticompetitive agreements versus abuse of dominance)
  - Resolution: an overlap at the level of the legal domain alone is not sufficient to justify a high relevance label. The focus should be on whether the cases engage with the same or a closely related legal issue. Where there is no meaningful substantive overlap, the appropriate label will generally be Label 1 at most.
  - Example: two cases both concern EU competition law, but one deals with cartel agreements under Article 101 TFEU, while the other concerns abuse of dominance under Article 102 TFEU. Despite belonging to the same domain, the legal questions differ, so the relevance is limited.

- ***Edge case 3: similar reasoning, but different facts***
  - Situation: two cases apply a similar line of reasoning but in different factual or procedural settings
  - Resolution: the key question is whether the reasoning is meaningfully transferable to the query case. If the reasoning can be clearly applied despite the different context, Label 2 is appropriate. If the factual or procedural differences limit the case's usefulness, Label 1 should be chosen.
  - Example: two cases both assess whether a restriction is justified under EU law using a proportionality analysis. In one case, the issue concerns public health measures, while in the other it relates to consumer protection. Although the reasoning structure is similar, the different factual contexts limit how directly the analysis can be transferred, which justifies assigning Label 1 (rather than Label 2).

- ***Edge case 4: partial overlap***
  - Situation: the candidate case addresses one aspect of the query but not the core issue
  - Resolution: the key question is how central the overlap is to the legal issue in the query case. If the shared element concerns a central aspect of the legal problem, Label 2 is appropriate. If it is only peripheral or incidental, Label 1 should be assigned.
  - Example: the query case concerns the justification of a restriction on free movement of goods under public health grounds. The candidate case also deals with free movement of goods but focuses primarily on the definition of a measure

having equivalent effect. While there is some overlap in the legal framework, the candidate does not address the core issue of justification, so the relevance is limited to Label 1. If, however, the candidate case specifically analyzes justification under public health grounds, even in a different factual context, Label 2 would be appropriate.

- ***Edge case 5: multiple issues in one case***
    - Situation: a candidate case contains several legal issues, only one of which is relevant to the query case
    - Resolution: the key question is whether the relevant part is sufficiently significant to make the case useful overall. If the relevant issue plays an important role in the reasoning or outcome, Label 2 is appropriate. If it is only briefly mentioned, Label 1 should be assigned.
    - Example: the query case concerns the interpretation of a justification under free movement law. The candidate case addresses both free movement and procedural issues, but only a small part of the judgment discusses the relevant justification. If that discussion is central to the Court's reasoning, the case may still warrant Label 2. If it is only mentioned in passing and not developed in a meaningful way, Label 1 is more appropriate.

- ***Edge case 6: very general or abstract reasoning***
    - Situation: the candidate case discusses general legal principles without applying them to a comparable legal issue
    - Resolution: the key question is whether the reasoning goes beyond abstract statements and is meaningfully connected to the issue in the query case. If it only provides general background or high-level principles, Label 1 is appropriate. If there is no meaningful connection to the query issue, Label 0 should be assigned.
    - Example: the candidate case sets out general principles such as proportionality or legal certainty in EU law but does so in a broad and abstract manner without applying them to a situation comparable to the query case. While this can provide some contextual background (Label 1), it would not be useful for resolving the specific issue. If the reference is even more remote, for instance a passing mention of such principles in an unrelated legal context, then Label 0 should be chosen.

- ***Edge case 7: highly similar wording, but different meaning***
    - Situation: the cases appear similar due to shared legal language or phrasing, but differ in their underlying legal issue or doctrinal context
    - Resolution: the key question is the substantive meaning of the terms used. Superficial similarity in wording is not sufficient. Where there is no meaningful substantive overlap, Label 0 (or Label 1 at best) is appropriate.
    - Example: two cases both refer to "restrictions" under EU law. In one case, the term is used in the context of free movement of goods, while in another it surfaces in the context of competition law. Although the wording is similar, the legal frameworks and issues differ significantly, so the overlap is only superficial, thus leading to Label 0.

7 Structured decision framework

By combining the above insights, we can compile a structured decision framework with consecutive yes/no questions to help annotators determine the most appropriate label. *The practical decision rule is to begin at Label 0 and move upward and select the first label for which all conditions are satisfied as the correct one, with the understanding (i) that the labels are mutually exclusive and (ii) that they are arranged hierarchically from 0 to 3.*

Label 0 – Not relevant

1. Does the candidate case belong to a clearly different area of EU law than the query case?
2. Does the candidate case address a *wholly* different legal issue from the query case?
3. Is there no meaningful overlap in legal principles, reasoning, or factual context?

→ **If all answers are "yes", then assign Label 0. Otherwise, proceed to the next label.**

Label 1 – Marginally relevant

1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)?
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)?
3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine?

→ **If all answers are "yes", then assign Label 1. Otherwise, proceed to the next label.**

Label 2 – Substantially relevant

1. Do both cases fall within the same specific area of law and regulatory framework?
2. Do they address related legal issues or apply similar legal principles (even if not identical)?
3. Is there meaningful overlap in reasoning, interpretation, or methodology that could assist in resolving the query case?
4. Do they differ in terms of the legal question that is being asked or the provision that is being interpreted?

→ **If all answers are "yes", then assign Label 2. Otherwise, proceed to the next label.**

Label 3 – Directly relevant

1. Do both cases concern the same specific legal provision or closely related provisions?
2. Do they address essentially the same legal question or problem?
3. Do they apply the same legal test, principles, or doctrinal framework?
4. Would the reasoning in the candidate case directly guide or resolve the issue in the query case?

→ **If all answers are "yes", then assign Label 3.**

8 Annotation workflow and quality assurance

Some further remarks apply to the organization of the annotation workflow and the way in which the quality of the annotations is monitored.

8.1 Task batches

The annotations are organized into multiple batches of 100 query-candidate pairs for each annotator. This structure is intentional: it helps keep the workload manageable and provides clear intermediate milestones throughout the process. Given that annotation requires sustained attention and involves a certain cognitive load, working in smaller batches supports both efficiency and consistency over time.

Each annotator should complete all assigned batches within the indicated timeframe. If you are unable to complete an assigned batch within the expected timeframe, please inform the author.

8.2 Review and revision

As touched on in Section 4, annotators can revisit and update their annotations within the annotation sheets. If you notice an error in your own annotations, you are encouraged to revise your work.

8.3 Gold-standard checks

To monitor the annotation quality, the dataset includes a number of gold-standard items. These are query-candidate pairs for which a reference annotation has already been established. Gold-standard items are indistinguishable from regular tasks within the annotation interface and are inserted at random points throughout each annotator's assigned batches. This ensures that they provide an unbiased measure of annotation consistency. It is therefore important to approach every task in the same way, regardless of whether it is a gold-standard item or not, and to apply the guidelines consistently across all annotations.

8.4 Inter-annotator agreement

To further support quality assurance, the project also involves measuring inter-annotator agreement. Inter-annotator agreement in this context refers to the extent to which different annotators assign the same labels to the same query-candidate pairs. To facilitate this process, a subset of annotation tasks is shared among the annotators. Some query-candidate pairs are annotated by all annotators, while others are assigned to smaller groups (e.g., pairs of annotators). This enables annotations from different individuals to be compared and helps to identify areas where interpretations may diverge.

It is important to emphasize that inter-annotator agreement is used as a diagnostic tool. Its purpose is to assess the clarity of the guidelines and the consistency of the annotation process as a whole. It is *not* intended to evaluate individual annotators, but also to ensure that the dataset as a whole is reliable.

8.5 Escalation process for questions

Despite the detailed guidelines provided in this document, there may still be situations in which assigning a relevance label is not entirely clear-cut. This may occur, for example, when:

- the relevance of a candidate case is particularly difficult to determine

- the existing guidelines do not clearly apply
- the annotation interface presents incomplete or unclear information

In such cases, you are encouraged to first revisit the relevant sections of this document, in particular the label definitions and decision guidelines. In many instances, these will provide guidance to support a consistent decision. If uncertainty remains, however, the aim should be to apply the guidelines as consistently as possible. Where a choice must be made, select the label that best fits the definitions, even if some ambiguity persists. Consistency across annotations is more important than attempting to resolve every case with absolute certainty.

Note that you can also use the option to add free-form notes to your annotations. These can be helpful for documenting uncertainty, explaining your reasoning, or flagging cases that need further review.

Finally, if you encounter recurring uncertainties or if you feel that additional guidance would be helpful for particular types of cases, please do not hesitate to contact the author for clarification. Such feedback is always valuable and helps to improve the annotation experience for everyone involved.

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